

ORDER SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Muhammad Ramzan,
etc.

Addl. District Judge, etc.

16.06.2022. Mr. Zahoob Abbas Khan Kulachi, Advocate for the petitioners.

2. Learned counsel for the petitioners contends that the impugned order and judgment passed by the learned courts below are against the law and facts, arbitrary to the perverse and leading to the miscarriage of justice. He maintains that the petitioners are residents of Tehsil and District Layyah who are currently living at Lahore in order to earn their livelihood, they are never informed about the proceedings of the case and the impugned order and judgment have been passed in ignorance of the aforementioned facts. He finally submits that learned trial court had no authority to strike off the right of the petitioners to file written statement while appellate court also ignored the said legal aspect of the case, therefore, impugned order and judgment are liable to be set aside.

4. Rules 1 & 10 of Order VIII of the Code of Civil Procedure, 1908 which are relevant to this case are reproduced as under:-

1. Written statement.- The defendant, shall at or before the first hearing or within such time as the Court may permit, present a written statement of his defence and with such written statement, or if there is no written statement, at the first hearing shall produce in Court all documents in his possession or power on which he basis his defence or any claim for set-off.

(2)

(3)

(4)

Provided that the period allowed for filing the written statement shall not ordinarily exceed [thirty] days.

“Provided further that not more than two adjournments shall be granted for presenting the written statement.”

“1-A Presumption of admission of contents of plaint.- When the defendant fails to present written statement of his defence before the day fixed for his hearing, the Court shall presume that he admits the contents of the plaint as true:

Provided that nothing shall preclude the Court from permitting the defendant to present written statement, upon showing a just and sufficient cause in an application in writing supported by an affidavit:

Provided further that the permission to present written statement shall not extend beyond the period fixed in rule 1.

1-B. Additional copies of written statement and documents.- The defendant shall furnish additional copies of written statement and of the documents annexed therewith therewith for their supply to the plaintiff.”

10. Procedure when party fails to present written statement called for by Court.- Where any party from whom a written statement is so required fails to present the same within the time fixed by Court, the Court may pronounce judgment against him, or make such order in relations to the suit as it thinks fit.

5. It is manifest from the perusal of above provision that the period of thirty days and not more than two opportunities have been provided by the law to defendant to file written statement.

6. While dismissing the civil revision of the petitioners, the learned Additional District Judge, Layyah recorded the following findings:-

“Admittedly a suit for declaration is pending adjudication in the learned civil court where the petitioners/defendants No.10 to 13 put-up their appearance through counsel on 30.06.2021 and after availing ten opportunities spanning over about eight months failed to submit written statement/written reply. The right of the petitioners/defendants No.10 to 13 to submit written statement/written reply was struck off by learned trial court on 02.02.2022. The petitioners availed ample opportunities to submit written statement/written reply with the warning of last and final opportunity as well as adjournment subject to cost; but the petitioners did not bother to submit written statement. The petitioners/defendants No.10 to 13 cannot claim indefinite time to submit written statement/written reply in court as no illegality or irregularity is pointed out that the learned trial court has not rightly exercised the jurisdiction vested in it.

7. When confronted learned counsel for the petitioners failed to point out any illegality or jurisdictional error in the order and judgment impugned before this Court, warranting interference of this Court in the exercise of jurisdiction under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. Resultantly, instant petition, being devoid of any merit, is hereby ***dismissed in limine***.

(RAHEEL KAMRAN)
JUDGE

Asim Shahzad